

2 & 3 GEO. 6. *Ministry of Health* **Ch. viii.**
Provisional Order Confirmation (Blackburn)
Act, 1939.



CHAPTER viii.

An Act to confirm a Provisional Order of the
Minister of Health relating to the county
borough of Blackburn. [27th March 1939.]

WHEREAS under the provisions of the Public 38 & 39 Vict.
Health Act 1875 the Minister of Health has c. 55.
made a provisional order which needs confirmation by
Parliament :

Be it therefore enacted by the King's most Excellent
Majesty by and with the advice and consent of the Lords
Spiritual and Temporal and Commons in this present
Parliament assembled and by the authority of the same
as follows :—

1. The order of the Minister of Health which is Order in
set out in the schedule to this Act is hereby confirmed schedule
and shall have full validity and force. confirmed.

2. This Act may be cited as the Ministry of Health Short title.
Provisional Order Confirmation (Blackburn) Act 1939.

SCHEDULE.

COUNTY BOROUGH OF BLACKBURN.

Provisional order amending certain local Acts and provisional orders.

WHEREAS the mayor aldermen and burgesses of the county borough of Blackburn acting by the council (in this order called "the corporation") have under powers conferred upon them by certain of the local Acts and provisional orders mentioned in the schedule to this order (in this order called "the local Acts and orders") established loans funds and sinking funds for the redemption or purchase and extinction of stock and for the repayment of borrowed moneys;

And whereas by the local Acts and orders provision is made with regard to the investment of moneys forming part of the said funds;

And whereas the corporation have applied to the Minister of Health for the issue of a provisional order to amend and in part repeal the local Acts and orders in the manner following:

Now therefore the Minister of Health in pursuance of the powers given to him by sections 297 and 303 of the Public Health Act 1875 and of all other powers enabling him in that behalf hereby makes the following order:—

Short title
and com-
mencement.

1. This order may be cited as the Blackburn Order 1938 and shall come into operation on the date of the Act of Parliament confirming it.

Use of sink-
ing funds
in exercise
of statutory
borrowing
power.

2.—(1) Notwithstanding anything in the local Acts and orders the corporation may use for the purpose of any statutory borrowing power exercisable by them any moneys forming part of but not for the time being required for the purposes of any fund accumulated for the redemption of debt (in this section called "the lending fund").

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(2) The moneys so used shall be repaid to the lending fund out of the general rate fund within the period and by the methods within and by which a loan raised under the statutory borrowing power would be repayable :

Provided that the corporation shall repay to the lending fund the moneys so used or the balance thereof for the time being outstanding as the case may be as and when the same shall be required for the purposes of the lending fund and may if they so resolve repay the same at any time within the period aforesaid and in either case the repayment shall be made out of the general rate fund or out of moneys which would have been applicable to the repayment of a loan if raised under the statutory borrowing power.

(3) In the accounts of the general rate fund an amount equal to interest calculated at such rate per centum per annum as may be determined by the corporation to be equal as nearly as may be to the rate of interest which would be payable on a loan raised on mortgage under the statutory borrowing power on any moneys so used and for the time being not repaid shall be credited to the lending fund and debited to the undertaking or purpose with reference to which the moneys are so used.

(4) The statutory borrowing power shall be deemed to be exercised by such use as fully in all respects as if a loan of the same amount had been raised in exercise of the power and the provisions of any enactment as to re-borrowing of sums raised under the statutory borrowing power shall apply accordingly.

(5) For the purpose of section 119 of the Blackburn Corporation Act 1922 any moneys so used and not for the time being repaid to the lending fund shall be deemed to be invested in the manner authorised by that section. 12 & 13
Geo. 5. c. xx.

(6) Any moneys taken in pursuance of this section from the Blackburn Corporation Consolidated Loans Fund (No. 1) established in accordance with article II of the Blackburn Order 1897 and not repaid shall for the purposes of paragraphs (a) and (b) of subdivision (3) of article V of the said order be deemed to be moneys required to be invested or moneys invested respectively.

(7) In this section the term "statutory borrowing power" has the same meaning as it has in the Local Authorities (Stock) Regulations 1934 but excludes any power of borrowing under paragraph (a) of subsection (1) of section 215 of the Local Government Act 1933. 23 & 24
Geo. 5. c. 51.

3. The Blackburn Order 1925 is hereby repealed.

Repeal.

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SCHEDULE.

Session and chapter.	Short title of Act.	Short title of provisional order.
45 & 46 Vict. c. cexliii.	The Blackburn Improvement Act 1882.	—
55 & 56 Vict. c. cxviii.	The Blackburn Corporation Act 1892.	—
60 & 61 Vict. c. cxlv.	The Local Government Board's Provisional Order Confirmation (No. 18) Act 1897.	The Blackburn Order 1897.
12 & 13 Geo. 5. c. xx.	The Blackburn Corporation Act 1922.	—
15 & 16 GEO. 5. c. lxxx.	The Ministry of Health Provisional Orders Confirmation (No. 4) Act 1925.	The Blackburn Order 1925.
19 & 20 Geo. 5. c. xxxvii.	The Blackburn Corporation Act 1929.	—

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